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THE QUESTION MARK OVER FORM 6

The controversy centres on whether the ECI could add SIR-related requirements to Form 6 without formally amending the rules

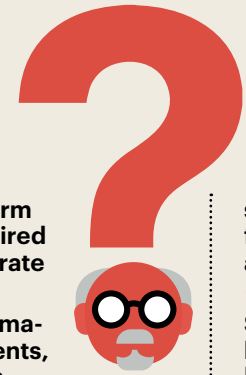
WHAT IS FORM 6

- The statutory form through which a new voter applies for inclusion in the electoral roll
- Prescribed under Rule 13 of the Registration of Electors Rules, 1960

HOW IT CAN BE ALTERED

- The power to amend the rules lies with the Centre under Section 28 of the Representation of the People Act (RPA), 1950
- The ECI is consulted, following which the amendment is notified in the Official Gazette
- It is then laid before both Houses of Parliament for 30 days while in session. Houses can subsequently modify or annul it
- This was the route followed when Form 6 was formally amended in 2022

WHAT HAPPENED DURING SIR



- During the SIR in Bihar in 2025, new applicants filing Form 6 were also required to submit a separate Annexure D
- It sought information and documents, including details establishing a link with an earlier SIR roll
- By Jul. 12 this year, the separate SIR requirement appeared inside ECINet's online Form 6
- Applicants were asked whether their own, parent's or grandparent's name appeared in the previous SIR roll, followed by details of the constituency, polling booth and serial number
- The field was not labelled mandatory, but the online form could not be submitted without the information. The downloadable Form 6 contained no such section

WHY THE CHANGE IS BEING CONTESTED

- Critics say making the SIR information necessary to submit Form 6 effectively altered a statutory form without following the prescribed amendment process
- ECs Vivek Joshi and Sukhbir Singh Sandhu had objected to it, with the latter called it "unauthorised and illegal"
- ECI's defence: Form 6 was never amended; ECINet merely integrated the existing SIR declaration into the digital workflow
- Also cited the Supreme Court's May 27 judgment upholding the SIR documentation framework
- Critics counter that the SC never decided whether the ECI could subsequently make an additional requirement effectively compulsory through software



"The BJP and Gyanesh Kumar are a joint venture company. He was the mastermind behind the 'Special Incentive from Ruling Party', looting votes and hijacking counting centres"

—MAMATA BANERJEE, *Chairperson, Mamata All India Trinamool Congress*

21. The 97 voters remained excluded despite rulings in their favour and had to apply afresh through Form 6. The ECI now says 88 have since done so, six are currently out of India and three have Portuguese passports. According to the ECI, Goa exposed a limitation in one software workflow, not central control. "If the allegation that somebody sitting in the central IT division could alter the electoral roll at will was correct, the 97 Goa cases could simply have been changed centrally," says an ECI source. Only field officers with individual credentials can perform statutory functions, while headquarters handles cybersecurity, a critical task after the 6.8 million attempts to breach the system on counting day during this year's assembly elections. Critics, however, say that a system that can prevent a statutory officer from acting is itself a form of control.

Other reports point to further institutional friction. The annual Special Summary Revision (SSR), which updates the rolls and enrols new voters, has not resumed for 2025-26 despite Joshi pressing for it. The ECI says there is no legal requirement to conduct an SSR alongside an SIR because both are undertaken under Section 21(3) of the Representation of the People Act, 1950. It says 27.3 million voters aged 18-28 have been added since the SIR began.

Crisis 4: Who is the boss at ECI?

All the dissent points to the larger contest over who runs the commission. A July 28 order by senior deputy election commissioner Maneesh Garg reportedly removed deputy election commissioner Sanjay Kumar from supervising the IT division headed by Seema Khanna. Sandhu and Joshi wrote separately to cabinet secretary T.V. Somanathan and jointly set aside the order the next